

26CV02628 Tessa Veksler vs Regents of the University of California et al

County: santa-barbara

Division: Civil Law & Motion

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Motion: Motion: Stay

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Tentative Ruling: Tessa Veksler vs Regents of the University of California et al

Case Number

26CV02628

Case Type

Civil Law & Motion

Hearing Date / Time

Fri, 08/21/2026 - 10:00

Nature of Proceedings

Motion: Stay

Tentative Ruling

For the reasons stated herein, the motion of defendant The Regents of the University of California to stay these proceedings is granted. The court orders these proceedings stayed. Further, the court continues the August 28, 2026, case management conference to January 15, 2027. In the case management statements to be filed and served prior to that case management conference as discussed herein, the parties shall provide the court with a report as to the status of United States District Court for the Central District of California case no. 2:25-cv-11745 entitled Tessa Veksler v. Regents of the University of California, et al.

Background:

Plaintiff Tessa Veksler (Plaintiff) alleges in these proceedings that she is an alumna of the University of California Santa Barbara. In April 2023, Plaintiff was elected student body president at UCSB. After the October 7, 2023, Hamas terrorist attacks in Israel, Plaintiff, who is Jewish, made an Instagram post on October 8, 2023, expressing sadness for and solidarity

with Israel and its people. (Complaint, 1, 3-4, 11, 21-24.)

Plaintiff further alleges that, almost immediately after Plaintiff's October 8, 2023, Instagram post, a group of antisemitic and anti-Israel students at the University of California Santa Barbara (UCSB) began a campaign of abuse and harassment against Plaintiff, targeting her on the basis of her Jewish status and shared ancestral identity. The campaign, which began online, continued through March 2024, and culminated with a petition to recall Plaintiff as the student body president. Though that petition was heard and voted upon at an April 10, 2024, student Senate meeting which dissolved into an hours-long litany of insults, false accusations, and harassment of Plaintiff, it was kept confidential from Plaintiff who was prevented from being able to defend herself. The petition failed. (Complaint, ¶¶ 1, 4, 8, 9, 24, 29-45.)

Though UCSB purportedly knew about the threats, abuse, and harassment to which Plaintiff was subjected, including through formal complaints by Plaintiff to administrators and Plaintiff pleading with UCSB to act in accordance with the express terms of its own anti-discrimination policy, UCSB allegedly ignored its anti-discrimination policy by refusing to assist Plaintiff or to protect her from the ongoing attacks and harassment; by excusing the assaults and harassment; by failing to take prompt or effective steps to stop or address the hostile environment; and by essentially choosing to ignore it, among other things. On one occasion in February 2024, a UCSB representative participated in the harassment of Plaintiff while wearing a face mask. (Complaint, ¶¶ 1, 5, 6-10, 25-28, 46-55.)

The harassment, threats, and bullying of Plaintiff caused her to fear for her safety on campus; negatively impacted her mental health and academic performance; and undermined her ability to lead the student body as student government president. Plaintiff suffered from panic attacks as a result of the threats and harassment against her and ultimately, was forced to stay off campus during the winter semester final exam period and to take her exams online instead of in-person on campus like the rest of her peers. (Complaint, ¶ 56.)

On April 8, 2026, Plaintiff filed a complaint against defendants UCSB and The Regents of the University of California (the Regents), asserting two causes of action: (1) violation of Education Code section 66270; and (2) violation of the Tom Bane Civil Rights Act (codified as Civil Code section 52.1); and separately filed a notice of related case identifying United States District Court for the Central District of California case no. 2:25-cv-11745 entitled Tessa Veksler v. Regents of the University of California, et al. (the Federal Action), as related to this case.

On July 8, after considering a joint stipulation of the parties filed on that day, the court signed and entered an order that a forthcoming motion of the Regents to stay these proceedings shall be filed and served on or before July 13, 2026, among other orders.

On July 13, the Regents filed a motion for an order staying these proceedings during the pendency of the Federal Action. The grounds for that motion include that this case and the Federal Action assert analogous claims based on the same underlying factual allegations against the same defendants and cover the same subject matter; that each of the factors identified by the California Supreme Court weigh in favor of staying this case; that a stay would avoid rulings that conflict with the proceedings in the Federal Action which is more advanced; and that no party or witness will suffer prejudice by having to litigate in an out-of-state forum.

Plaintiff opposes the motion.

Information and evidence appearing in the declaration of the Regents' counsel, Jonathan D. Miller (attorney Miller) submitted in support of the motion, and the declaration of Plaintiff's counsel, David J. Carroll (attorney Carroll) submitted in support of Plaintiff's opposition to the motion, reflects, without dispute, that on December 11, 2025, Plaintiff filed in the Federal Action, a complaint (the Federal Complaint) against the Regents and UCSB asserting three causes of action: (1) violation of Title 42 United States Code section 1983 (against defendant "DOE 1" only); (2) violation of Title VI of the Civil Rights Act of 1964 (against the Regents and UCSB); and (3) violation of 42 United States Code section 1983 (against defendant "DOE 1" only). (Miller Dec., ¶ 2 & exhibit A.)

The undisputed record also reflects that on June 12, 2026, the court in the Federal Action granted, in part and with leave to amend, a motion by the Regents and UCSB to dismiss claims asserted in the Federal Complaint. (Carroll Dec., exhibit 1.)

On July 10, 2026, Plaintiff filed in the Federal Action a first amended complaint (the Federal FAC) against the Regents. (Carroll Dec., exhibit 2.) The FAC asserts two causes of action: (1) violation of 42 United States Code section 1983 (against defendants “DOES 1-10” only); and (2) violation of Title VI of the Civil Rights Act of 1964 (against the Regents). (Ibid.)

On August 7, 2026, the Regents filed in the Federal Action, an answer to the Federal FAC. (Carroll Dec., exhibit 3.)

Analysis:

“[A] court ordinarily has inherent power, in its discretion, to stay proceedings when such a stay will accommodate the ends of justice.” (People v. Bell (1984) 159 Cal.App.3d 323, 329; accord OTO, L.L.C. v. Kho (2019) 8 Cal.5th 111, 141 (OTO).) “‘[T]he power to stay proceedings is incidental to the power inherent in every court to control the disposition of the causes on its docket with economy of time and effort for itself, for counsel, and for litigants.’” (OTO, supra, 8 Cal.5th at p. 141; see also Code Civ. Proc., § 128, subd. (a)(3), (8).)

Relevant here, “[i]t is black letter law that, when a Federal action has been filed covering the same subject matter as is involved in a California action, the California court has the discretion but not the obligation to stay the state court action.” (Caiafa Prof. Law Corp. v. State Farm Fire & Cas. Co. (1993) 15 Cal.App.4th 800, 804 (Caiafa); see also Farmland Irr. Co. v. Dopplmaier (1957) 48 Cal.2d 208, 215 (Farmland) [“a stay of the California proceedings is not a matter of right”].)

“In exercising its discretion the court should consider the importance of discouraging multiple litigation designed solely to harass an adverse party, and of avoiding unseemly conflicts with the courts of other jurisdictions. It should also consider whether the rights of the parties can best be determined by the court of the other jurisdiction because of the nature of the subject matter, the availability of witnesses, or the stage to which the proceedings in the other court have already advanced.” (Farmland, supra, 48 Cal.2d at p. 215.) “The California Supreme Court also has isolated another critical factor favoring a stay of the state court action in favor of the Federal action, a factor which happens to be present in this case—the Federal action is pending in California not some other state.” (Caiafa, supra, 15 Cal.App.4th at p. 804.)

With the exception of UCSB which is not named as a defendant in the Federal FAC, the available information and evidence shows, effectively without dispute, that Plaintiff and the Regents are parties to this case and the Federal Action. Plaintiff also does not, and cannot reasonably, dispute that the factual allegations giving rise to the claims asserted in the complaint filed in this case and the Federal FAC are identical or nearly identical, and that this case and the Federal Action involve the same subject matter. Further, the Federal Action was filed before this case and is pending in California.

Under the circumstances present here, and for all reasons discussed above, the present record is sufficient to show the possibility of conflict with the court in the Federal Action to the extent the court in that action makes findings of fact or law as to the common subject matter, questions, and matters at issue in each case, and of inconsistent rulings as to those common questions or issues. For these and all further reasons discussed above, the factors present here weigh in favor of imposing a stay of these proceedings.

The opposition of Plaintiff to the motion asserts that sovereign immunity requires that Plaintiff litigate in state court the causes of action asserted in the complaint filed in this case. For this reason, Plaintiff contends, there is no just reason to stay the litigation of those causes of action which cannot be brought in any other forum.

“[T]he Eleventh Amendment is one of several aspects of the federal ‘constitutional compact’ recognizing and preserving the states; historic common law sovereign immunity. [Citations.] And, specifically, this amendment recognizes and preserves the states’ common law immunity with respect to suits brought in the federal courts.” (Pierce v. San Mateo County Sheriff’s Dept. (2014) 232 Cal.App.4th 995, 1013, original italics [also stating that “[t]he amendment does not, itself, apply to actions brought

in the state courts.”). “The Eleventh Amendment protects states and state instrumentalities, such as The Regents, from suit in federal court.” (Doe v. Regents of the University of California (9th Cir. 2018) 891 F.3d 1147, 1153.)

Though its reply, the Regents asserts that sovereign immunity would not bar Plaintiff’s state law claims against the “Doe” defendants named in the Federal FAC, the Regents does not dispute, and appears to expressly concede, “that sovereign immunity would bar Plaintiff’s state law claims against The Regents.” (Reply at p. 2, ll. 14-16, original italics; see also Corales v. Bennett (9th Cir. 2009) 567 F.3d 554, 573 [Eleventh Amendment immunity applied to “state civil rights claims brought in federal court”]; Jones v. Kmart Corp. (1998) 17 Cal.4th 329, 338 [Civil Code section 52.1 provides “remedies for certain misconduct that interferes with” rights secured by California law]; Walton v. Victor Valley Community College Dist. (2026) 119 Cal.App.5th 1164, 1174 (Walton) [to prevail under Education Code section 66270, “a plaintiff must prove the same elements as a Title IX claimant”].) Instead, the Regents contends that the issue of sovereign immunity is not dispositive of whether a stay of these proceedings should be imposed.

Even if Eleventh Amendment immunity applies to the causes of action asserted by Plaintiff in the complaint filed in this case, Plaintiff fails to explain why this weighs against a stay of these proceedings under the circumstances present here.

For example, the sole claim for relief asserted against the Regents in the Federal FAC arises from a purported violation of Title VI of the Civil Rights Act of 1964, “which provides that ‘[n]o person in the United States shall, on the ground of race, color, or national origin, be excluded from participation in, be denied the benefits of, or be subjected to discrimination under any program or activity receiving Federal financial assistance.’ [Citation.]” (Coral Construction, Inc. v. City and County of San Francisco (2010) 50 Cal.4th 315, 333; 42 U.S.C. § 2000d; Carroll Dec., exhibit 2 at p. 29 [second claim for relief].) “The two elements for establishing a cause of action pursuant to Title VI are (1) that there is racial or national origin discrimination and (2) the entity engaging in discrimination is receiving federal financial assistance.” (Baker v. Board of Regents of State of Kan. (10th Cir. 1993) 991 F.2d 628, 631; see also Davis v. Samuels (3d Cir. 2020) 962 F.3d 105, 115 & fn. 11 [the claim “require[s] allegations of discrimination based on color or race, or ... national origin.”].)

Education Code section 66270 also prohibits “discrimination on the basis of disability, gender, gender identity, gender expression, nationality, race or ethnicity, religion, sexual orientation, or any characteristic listed or defined in Section 11135 of the Government Code or any other characteristic that is contained in the prohibition of hate crimes set forth in subdivision (a) of Section 422.6 of the Penal Code, including immigration status, in any program or activity conducted by any postsecondary educational institution that receives, or benefits from, state financial assistance or enrolls students who receive state student financial aid.” (Ed. Code, § 66270.)

Similar to Title VI of the Civil Rights Act of 1964, “the antidiscrimination provisions in the Education Code are designed primarily to prevent recipients of state funding from using such funds in a discriminatory manner: Both statutes condition their prohibition on discrimination on the receipt of public funding; both broadly proscribe discrimination in education[.]” (Donovan v. Poway Unified School Dist. (2008) 167 Cal.App.4th 567, 603.) Further, “a plaintiff must prove the same elements as a Title IX claimant: ‘(1) he or she suffered severe, pervasive and offensive harassment, that effectively deprived plaintiff of the right of equal access to educational benefits and opportunities; (2) the school district had actual knowledge of that harassment; and (3) the school district acted with deliberate indifference in the face of such knowledge.’” [Citations.]” (Walton, supra, 119 Cal.App.5th at p. 1174.)

As to the claim for relief asserted in the Federal FAC against the Regents, Plaintiff alleges that the Regents receives financial assistance from the U.S. Department of Education; that the Regents’ failure to enforce its discrimination, harassment, and hostile environment policies in an evenhanded manner or to prohibit its students from publicly harassing and threatening Plaintiff on and off the UCSB campus created an environment that is hostile to Jews; that the hostility towards Jewish members of the UCSB community was severe enough that it interfered with their ability to participate in school programs and forced Plaintiff to take final exams off campus; and that the Regents failed to take corrective action while on notice of the discrimination against and hostile environment for Jewish members of the community. (Carroll Dec., exhibit 2, ¶¶ 67-72.)

In the first cause of action asserted in the complaint filed in this case, Plaintiff similarly alleges that the Regents receive state financial assistance and enroll pupils who receive state student financial aid; that Plaintiff was subjected to severe and pervasive harassment, including threats of violence both on and off campus, due to her Jewish heritage; and that the

Regents had actual notice of the discrimination against and hostile environment for Jewish members of the community (as shown by their public statements), but failed to take corrective action. (Complaint, ¶¶ 60-62.)

In addition, though Civil Code section 52.1 “does not require a plaintiff to allege the defendant acted with discriminatory animus or intent based upon the plaintiff’s membership in a protected class of persons ... [a] defendant is liable if he or she interfered with or attempted to interfere with the plaintiff’s constitutional rights by the requisite threats, intimidation, or coercion.” (Quezada v. City of Los Angeles (2014) 222 Cal.App.4th 993, 1007–1008.) The second cause of action asserted in the complaint filed in this case alleges that the Regents “intentionally interfered with [Plaintiff’s] right to be free from harassment and threats of violence due to her Jewish heritage.” (Complaint, ¶ 68.)

For all reasons discussed above, the subject matter of, and issues of law presented in, each of the causes of action asserted by Plaintiff in the Federal Action and this case, which each assert claims of discrimination against Jewish persons such as Plaintiff, are effectively the same and involve similar elements of proof. Furthermore, a stay of these proceedings would not preclude Plaintiff from conducting discovery as to the subject matter or elements of proof at issue in each action. For these reasons, the court does not find that a stay of this case would cause Plaintiff to suffer any prejudice, hardship, or inconvenience notwithstanding whether Plaintiff is precluded from bringing any state law claims in the Federal Action. (See Thomson v. Continental Ins. Co. (1967) 66 Cal.2d 738, 747–748 [general discussion].)

There also exists a question as to whether the collateral estoppel effect of any rulings that may be issued in the Federal Action weighs in favor of a stay of these proceedings.

“Res judicata ... is an umbrella term encompassing issue preclusion and claim preclusion, both of which describe the preclusive effect of a final judgment.” (Guerrero v. Department of Corrections & Rehabilitation (2018) 28 Cal.App.5th 1091, 1098 (Guerrero).) Relevant here, “collateral estoppel (or as it is sometimes known, issue preclusion) precludes a party from relitigating an issue of fact or law if the issue was litigated and decided in a prior proceeding.” (Lumpkin v. Jordan (1996) 49 Cal.App.4th 1223, 1229 (Lumpkin).) “A plaintiff can maintain concurrent state and federal court actions arising from the same facts and circumstances [citations], albeit the plaintiff risks having his or her state court or federal court action barred by res judicata if a judgment is rendered in the other case.” (Benitez v. Williams (2013) 219 Cal.App.4th 270, 276.)

At this stage of the proceedings, it does not appear that the doctrine of claim preclusion, under the circumstances presented here, precludes Plaintiff from maintaining concurrent state and federal actions which arise from the same facts or circumstances. (See Guerrero, supra, 28 Cal.App.5th at pp. 1103–1104 [discussing exception to claim preclusion].) To the extent this case raises issues of fact or law which are identical to those presented in the Federal Action, there exists the possibility that any rulings by the court in the Federal Action which actually litigate and determine those issues by a valid and final judgment will have a collateral estoppel effect on this case. (Lumpkin, supra, 49 Cal.App.4th at pp. 1230–1232 [discussing collateral estoppel effect of federal court’s ruling on a summary judgment motion].) For these additional reasons, and considering principles of comity (see In re Marriage of Gray (1988) 204 Cal.App.3d 1239, 1250 [general discussion]) and judicial economy, the factors present here weigh in favor of staying these proceedings.

For all reasons discussed above, and notwithstanding that UCSB is not a party to the Federal Action, the court will grant the motion, and order a stay of these proceedings. Further, the court will continue the case management conference presently set for August 28, 2026, to January 15, 2027. In the case management statements which the parties are each required to file and serve prior to that conference as provided in California Rules of Court, rule 3.725, the parties shall provide the court with a report as to the status of the Federal Action. The court’s ruling herein shall not preclude any party from filing a motion for an order lifting the stay of these proceedings, if appropriate.

Judges

Judge Donna D. Geck

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